EXPLAINER

When the system feels against you

A parish closed, a request refused, a process begun, a ministry restricted. This page is about what the Church's own law says when its decisions land on you, and what you can actually do.

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People come to me at the moment the Church stops feeling like home and starts feeling like an institution. A parish they built is to be merged. A nullity petition they filed is being opposed, or one they never wanted has been filed against them. A priest has been told to stop ministry while something is looked into. A religious has been told to leave. A parent has been told the baptism will wait. Someone has been told, in front of others, that they may not come forward for communion. I cannot tell you from a web page whether the decision in your case was right. I can tell you how the law thinks about it.

Three different complaints

Almost every hard conversation I have begins by sorting out which of three things has happened, because they call for different responses.

- **A bad decision under a good law.** The rule is fine; it was applied wrongly, hastily, without hearing you, or without the reasons the law requires. This is the most common case and the one with the clearest remedies: ask for reconsideration, then take recourse. cc. 1732-1739
- **A bad law.** The rule itself is unjust, or reaches further than its words allow. The Church has principles for this too, but they are slower and narrower than most people hope.
- **A law you dislike.** The rule is sound and was applied correctly; you simply wish it were otherwise. Here the law does not help you, and an advocate who tells you it does is not doing you a service. What remains is the right to make your view known, respectfully, and the freedom to ask for a dispensation. c. 212 §3

Most situations are a mixture. A parish closure can be lawful in substance and still defective in how it was decreed. A restriction on a priest can be within the bishop's power and still have been imposed without the steps the law requires. Sorting the complaint is the first thing I do.

The principles that protect you

Canon law is not only a set of powers for those in authority. Book I and the canons on the rights of the faithful contain a real, if modest, set of protections, and they bind the people who decide your case.

- **The salvation of souls is the supreme law.** The Code ends with this sentence. It is not a licence to set aside the law, and no judge weighs a canon against it. It is an instruction to everyone who applies the law to keep its purpose in view. c. 1752
- **Equity.** Where the law is silent, the case is to be decided by analogy, by general principles applied with canonical equity, by the practice of the Roman Curia and by the common opinion of the learned. Never, though, to create a penalty: in penal matters a gap in the law is simply a gap. c. 19
- **Strict interpretation.** Laws that establish a penalty, restrict the free exercise of rights or contain an exception are read narrowly. If a restriction on you depends on stretching the words of a canon, the stretch is not allowed. c. 18
- **The benefit of the doubt.** Where there is a genuine doubt about what the law means, the law does not bind, even an invalidating law. Where the doubt is about the facts, the bishop can dispense. c. 14
- **Dispensation.** A merely ecclesiastical law can be relaxed in a particular case for a just and reasonable cause. Divine law cannot be dispensed, and neither can the elements that make an act what it is, but a great deal of what frustrates people is dispensable if asked for properly. cc. 85-93
- **A forum, and fairness in it.** You may vindicate your rights before a competent Church forum; if called to judgment, you are to be judged according to law applied with equity; and you may not be punished except according to the norm of law. c. 221
- **Good name and privacy.** No one may unlawfully harm your reputation or violate your right to privacy. This binds the people investigating you as much as anyone else. c. 220
- **Your voice.** You have the right to make your needs and wishes known to your pastors, and the right, sometimes the duty, to make your opinion known on matters that concern the good of the Church. c. 212 §§2-3

"An unjust law is no law at all"

St Thomas teaches that a human law contrary to divine law does not bind in conscience, and the Code agrees in its own way: a lower authority cannot validly act against a higher one, and the Pope's laws are read in harmony with divine law. That is true, and it matters. But notice what it is: a conclusion about the law, not a procedure. Nothing follows from it on its own. No decree is lifted, no office restored, no parish reopened. You still need a forum, and a decision from someone with the authority to give one. "It does not bind me" is a conviction a person can hold with integrity; it is almost never a strategy. The strategy is to make the argument where it can be heard, within the time the law allows. ST I-II q. 96 a. 4; c. 135 §2

What no tribunal judges

One distinction gives real relief to people in these situations. The Church's verdicts are about acts and legal facts: whether a marriage was validly contracted, whether an offence was committed, whether a decree was lawfully issued. They are not judgments of your soul. The Church herself says that while we can judge an act to be gravely wrong in itself, judgment of persons must be left to the justice and mercy of God. Your conscience, the internal forum, is yours and God's. No decree reaches it, and no decree can take it from you. CCC 1861

The practical path

Whatever the merits, the same handful of steps protects you in nearly every situation.

- **Get it in writing.** A decision that affects your rights is to be given in writing, with at least a summary of its reasons. If you were told something in person or by phone, ask politely for the written decree. Until you have it, many deadlines have not even begun. cc. 51, 54-55
- **Note the date you received it.** Deadlines in canon law run from lawful notification, and they are short. The request to the author to reconsider must be made within ten useful days; recourse to the superior within fifteen. cc. 1734 §2, 1737 §2
- **Ask for the reasons** if they were not given, and ask for reconsideration in writing. This is not a formality; it is a required step, and it is often where a mistake gets corrected quietly.
- **Find an advocate early.** You always have the right to one in recourse and in a penal process. An advocate cannot change the facts, but can make sure every step the law requires is actually taken. cc. 1738, 1723
- **Keep your tone.** Letters written in anger are read for years. Say what happened, what you are asking for and why, and nothing else.

In practice: the request for reconsideration is the single most missed step. People wait for a reply to an angry email, or for a meeting that keeps being postponed, and the ten useful days pass. Send the written request first; talk afterwards.

What a canon lawyer can and cannot do

I cannot overturn doctrine, and I will not pretend a disciplinary dispute is a doctrinal one when it is not. I cannot promise an outcome; a recourse is decided by someone else, on the law and the facts. I cannot make a slow process fast. What I can do is make sure you are heard according to law: that the decree is in proper form, that the deadlines are kept, that your side is set out clearly and completely, that the rights the canons give you are actually exercised rather than merely possessed, and that you understand at each stage what is realistically possible. See your rights in the Church and administrative recourse for the detail.

The pace, and the silence

I owe you honesty here. Recourse to Rome is slow, often more than a year, sometimes much more. Letters go unanswered for long stretches. Precautionary restrictions on clergy can last for years while an investigation moves at a pace no one controls. The law provides for support in the meantime, but it is thin, and it leaves much to the goodwill of the authority. None of this is a reason not to act; the deadlines do not wait for your discouragement. It is a reason to begin with your eyes open and to have someone keeping the file alive while you get on with your life.

Remaining while contesting

Some people feel that to challenge a bishop's decree, or to oppose a tribunal, is to set themselves against the Church. It is not. The Code itself gives you the right to seek a remedy, and the Church has always understood recourse to a superior as an act within the communion, not against it. Saints have appealed to Rome against their bishops and been heard, and some have been refused and stayed. The faithful have the right to make their views known to their pastors, with respect for the faith, for the pastors and for the common good. An appeal made that way is not rebellion. It is a form of trust that the Church's own law means what it says. c. 212 §3

KEY CANONS

- **c. 14** In a doubt of law, the law does not bind.
- **c. 18** Penal and restrictive laws are read strictly.
- **c. 19** Equity fills gaps, never to create a penalty.
- **c. 51** Decrees in writing, with reasons.
- **cc. 85-93** Dispensation for a just cause.
- **c. 212** The right to make needs and opinions known.
- **c. 220** Good name and privacy.
- **c. 221** A forum, equity, and no penalty except by law.
- **cc. 1734-1738** Reconsideration in 10 useful days; recourse in 15; an advocate.
- **c. 1752** The salvation of souls, the supreme law.

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